Memberships @ The Gainsborough Health Club and Spa

From: The Gainsborough Health Club & Spa <enquiries@thegainsborough.net>
To: rupert@pebmarsh.com
Date: Mon, 20 Jul 2026 at 10:04 (BST)

Dear Rupert Thomas

Welcome to The Gainsborough Health Club & Spa, thank you for joining we hope you enjoy your Lifestyle Couples Membership membership with us.

Before you attend your first visit you must register with us, click here and fill in your medical questionnaire. Failure to do this before you attend the club may result in no entry.

When you arrive for your first visit the team show you around the club and advise you on any processes you need to be made aware of during this time, and issue you with your membership card. The team will also ask you to book your gym induction.

We look forward to see you soon

Membership start date:	21st July 2026
Joining fee:	£0.00
Pro Rata Initial Payment:	£159.92
Payment Due Today:	**£159.92**

Monthly Direct Debit payment amount: £130.00

This will be taken on the 28th day of each month
First Direct Debit will be taken on 28th August 2026

You are committing to an initial first payment of £159.92 and subsequent payments of £130.00 per month for the duration of your contract.

Please print off and retain for your records.

STARLING BANK LIMITED
London
London
E1 6PW

Name of account holder:
Rupert Thomas & Mandy Zimmer

Bank / Building Society Sort Code:
****-**-71**

Instruction to your bank / building society to pay by Direct Debit.

DIRECT Debit

Service User Number:
171547

Instruction to your bank or building society:

Please pay The Gainsborough Health Club & Spa Direct Debits from the account detailed in this instruction, subject to safeguards assured by the Direct Debit Guarantee.

I understand that this instruction may remain with The

Account Number:
******8283**

Gainsborough Health Club & Spa and details will be passed electronically to my bank / building society.

Date:
20/07/2026

The Direct Debit Guarantee

- This Guarantee is offered by all banks and building societies that take part in the Direct Debit Scheme. The efficiency and security of the Scheme is monitored and protected by your bank or building society.
- If the amounts to be paid or the payment dates change, The Gainsborough Health Club & Spa will notify you 10 working days in advance of your account being debited or as otherwise agreed.
- If an error is made by The Gainsborough Health Club & Spa or your bank or building society, you are guaranteed a full and immediate refund from your branch for the amount paid.
- You can cancel a Direct Debit at any time by writing to your bank or building society. Please also send a copy of your letter to The Gainsborough Health Club & Spa.

Conditions of Membership

The Gainsborough Health Club & Spa

1. The leisure club named on the front of this form (“the Club”)

will be managed and administered by Compleat Enterprise LTD (The Gainsborough Health Club and Spa) (the proprietor)

(“the Member”) observing the following conditions of

membership which will govern the relationship between the

Member and the Proprietor.

2. The Member’s membership of the Club shall commence on

the date specified on the front of this form, and shall either

continue for a fixed period of 12 months or on a

month-by-month basis, such basis indicated on the front of this

form, until renewed in accordance with paragraph 3 below or

unless terminated in accordance with these terms and

conditions.

3. In the case of fixed 12-month memberships, Members shall be

entitled to renew their membership on the expiry of the initial

12-month period. Continuance of monthly payments to the

Club at the end of the initial 12-month period shall be deemed to constitute renewal of the Member's membership for a further 12-month period.

4. The Member may be obliged to pay a joining fee for the Club. Such joining fee shall be a one-off payment and shall be as set out in the Club's then current tariff sheet. The joining fee shall not be refundable unless the Member cancels in accordance with clause 6 of these Conditions of Membership as a result of a serious breach of these conditions by the Club, in which case the joining fee will be refunded in full by the Club.

5. The Member shall pay to the Club the monthly membership fee as set out in the Club's then current tariff sheet. Monthly fees shall be payable by direct debit. In the case of fixed 12-month memberships, the Member shall have the option to pay the membership fee annually in advance by cash, cheque or credit card. In the case of month-by-month memberships, fees shall only be payable by direct debit.

6. The Member can cancel membership at any time subject to giving not less than twenty eight days notice in writing, expiring at the end of a calendar month. If the Member is cancelling due to a serious breach of these Conditions by the Club, the Member will be entitled to a full refund of their joining fee and a pro-rata refund of their membership fee.

7. Members shall be entitled to make a request to the Club for the suspension of monthly payments for work or medical reasons. It shall be entirely at the Club's discretion as to whether to offer the Member such a suspension, (the Club may request evidence of the Member's illness or injury e.g. doctor's certificate) and the Club shall only allow up to three months

suspension in any one year. Alternatively, where the request for suspension is for medical reasons the member may transfer membership in accordance with clause 9 below.

8. Memberships will be granted at the discretion of the Club and Members will be required to show their membership cards on each visit to the Club. These membership cards will remain the property of the Club at all times and will be returnable to the Club upon termination of membership. There will be a charge payable by the Member for the replacement of any lost membership cards.

9. Membership is only transferable in the event that the Member is unable to use the Club through serious illness or injury and wishes to transfer their membership to another suitable person (evidence of the Member's illness or injury is required - eg a doctor's certificate). The Club reserves the right to refuse any application or renewal of membership without notice and without giving any reason for doing so.

10. The Club may terminate membership at any time in the following circumstances:

(a) if the Member commits a serious or repeated breach of these conditions of membership and the breach, if capable of remedy, is not remedied within seven days of receipt of a default notice;

(b) a membership card is misused;

(c) club property is deliberately damaged or vandalised;

(d) the Member refuses to comply with the instructions of Club staff in relation to policy, procedures or safety;

(e) inappropriate behaviour towards members of staff; or

(f) late payment of fees by more than thirty days in arrears.

In the case of a membership being terminated, it shall be at the sole discretion of the Club as to whether any of the membership fee is refundable. The Club reserves the right to retain a proportion of the membership fee to cover any reasonable costs incurred by the Club.

11. Membership includes access to the Club and use of its facilities during opening hours, but there will be an extra charge for use of towels and for some fitness classes. The Member acknowledges that some of the facilities may be out of use from time to time whilst undergoing maintenance.

12. Members and their guests are required to use the Club in a proper and reasonable manner. The Club reserves the right to require any Members or guest to make good or repay the Club in full for any damage to facilities or other persons caused by negligence or wrongful act of such Member or guest.

13. The Club reserves the right to refuse entry to any Member or guest into the Club without declaring any reason for doing so and will always refuse access to the Club and its facilities to any person who appears to be or is under the influence of alcohol or drugs.

14. No responsibility will be accepted by the club for the loss or damage to the property or valuables of any Member or guest, including any items or property which may be left in the lockers provided.

15. Subject to clause 14, the Club accepts no liability for any damage, loss, illness or injury resulting from the use of the Club facilities by Members or guests howsoever that may have been caused, save for death or personal injury caused by its own negligence. The Club accepts no liability for any illness or injury

resulting from over exertion, aggravation or precipitation of any medical condition caused by the use of the Club facilities. All persons use the facility on the express understanding that it is at their own risk and Members and guests are strongly advised to seek medical advice before they begin exercise at the Club.

16. Members must go through a screening and induction process before they are allowed to use any facilities in the Club for the first time. The Club reserves the right to refuse use of the facilities at any time should it be concerned about a Member's state of physical health.

17. The Club reserves the right to alter fee membership prices, at any time and for any reason. Members will be given not less than 28 day's notice of any proposed increase. The Club reserves the right to alter the rules, fees, membership prices conditions of membership available facilities and opening times at any time. Members will be given 28 day's notice of any proposed increase in membership prices.

18. The Club may be closed for essential maintenance work, special functions or in any other circumstances as the management feel necessary, but notice of this will be displayed at the Club as soon as practical.

19. Members may bring guests to use the facilities of the Club at a discounted day membership rate providing that they are signed in at reception and Members are prepared to accept full responsibility for the conduct of their guests. It will be the responsibility of the Member to ensure that all guests settle any costs they may have incurred during their visit.

20. Junior membership is not available. Juniors up to the age of 16 may use the Club facilities on payment of the appropriate

Day Membership rate in force at the time until 6pm on that day. All juniors under 16 years must be accompanied by at least one adult member whilst in the Club.

21. For hygienic reasons it is necessary to shower before using the pool and Members and their guests are required to wear the appropriate clothing for the activity in which they are taking part. No outdoor shoes may be worn on the pool side areas. No smoking is allowed in the leisure area.

22. Certain data disclosed by a Member to the Club will be “Personal Data” as defined under the Data Protection Act 1998. The Club will hold this “Personal Data” for the purposes of maintaining a full record of a Member’s membership details. Unless the Club is legally obliged to do so, it will not pass Personal Data to any third parties without a Member’s prior consent. The Club agrees to use the Personal Data in accordance with any instructions given to it by the Member, and agrees to comply with all relevant legislation with regard to the keeping of “Sensitive Personal Data”. Members should let the Club know if there are any changes to the membership details provided, and if that Member does not wish to receive promotional material.

23. Compleat Enterprise Limited has the right to enforce the terms of these conditions of membership in accordance with the Contracts (Rights of Third Parties) Act 1999.

24. These conditions of membership are governed by English law and the English courts shall have exclusive jurisdiction to settle any disputes which may arise out of or in connection with these conditions of membership.

Best Wishes

The Gainsborough Team

